

SENATE No. 682

The Commonwealth of Massachusetts

PRESENTED BY:

Cynthia Stone Creem

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act improving access to breast pumps.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Cynthia Stone Creem</i>	<i>Norfolk and Middlesex</i>	
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>4/6/2025</i>

SENATE No. 682

By Ms. Creem, a petition (accompanied by bill, Senate, No. 682) of Cynthia Stone Creem for legislation to improve access to breast pumps. Financial Services.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 600 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act improving access to breast pumps.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 32A of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by adding the following section:-

3 Section 34. (a) As used in this section, “multi-user breast pump” shall mean a breast
4 pump that is: (i) capable of initiating and supporting milk supply; (ii) able to be used by multiple
5 users safely and hygienically; (iii) durable enough to be used by a mother who is expressing 8
6 times per day or more; (iv) is made for heavy usage with a long motor life; (v) operating using a
7 closed system; (vi) is capable of suction power from 0 to 300 mmHg; (vii) has a multiphase
8 system or the ability to customize vacuum and cycling for each user; and (viii) is run on
9 electricity, not batteries alone.

(b) The commission shall provide to an active or retired employee of the commonwealth who is insured under the group insurance commission coverage for the cost of the rental and usage of a multi-user breast pump by the mother of a newborn infant who is receiving care at an intensive care or special care nursery, or has cardiac, neurological, or oral anomalies that prevent direct feeding at the breast, until such time as the infant is discharged, or until the mother is no longer pumping breastmilk. The multi-user breast pump shall be made available to the user within 24 hours of maternal hospital discharge.

(c) The commission shall provide to an active or retired employee of the commonwealth who is insured under the group insurance commission, and eligible for a covered multi-user breast pump under this section, coverage for: (i) periodic replacement parts for the multi-user breast pump including, but not limited to, connectors, valves, tubing, backflow protectors, and flanges; (ii) breast milk storage bags; and (iii) microwave bags for sterilizing the multi-user breast pump parts.

(d) The commission shall provide to an active or retired employee of the commonwealth who is insured under the group insurance commission, and eligible for a covered multi-user breast pump under this section, coverage for: (i) an initial assessment, instruction and fitting by an International Board Certified Lactation Consultant (IBCLC); and (ii) ongoing assessment, support and refitting as needed by an IBCLC.

SECTION 2. Chapter 118E of the General Laws is hereby amended by inserting after section 10Q the following section:-

Section 10R. (a) As used in this section, “multi-user breast pump” shall mean a breast pump that is: (i) capable of initiating and supporting milk supply; (ii) able to be used by multiple

users safely and hygienically; (iii) durable enough to be used by a mother who is expressing 8 times per day or more; (iv) is made for heavy usage with a long motor life; (v) operating using a closed system; (vi) is capable of suction power from 0 to 300 mmHg; (vii) has a multiphase system or the ability to customize vacuum and cycling for each user; and (viii) is run on electricity, not batteries alone.

(b) The division and its contracted health insurers, health plans, health maintenance organizations, behavioral health management firms and third-party administrators under contract to a Medicaid managed care organization or primary care clinician plan shall provide coverage for the cost of the rental and usage of a multi-user breast pump by the mother of a newborn infant who is receiving care at an intensive care or special care nursery, or has cardiac, neurological, or oral anomalies that prevent direct feeding at the breast, until such time as the infant is discharged, or until the mother is no longer pumping breastmilk. The multi-user breast pump shall be made available to the user within 24 hours of maternal hospital discharge.

(c) The division and its contracted health insurers, health plans, health maintenance organizations, behavioral health management firms and third-party administrators under contract to a Medicaid managed care organization or primary care clinician plan shall provide an individual, who is eligible for a covered multi-user breast pump under this section, coverage for: (i) periodic replacement parts for the multi-user breast pump including, but not limited to, connectors, valves, tubing, backflow protectors, and flanges; (ii) breast milk storage bags; and (iii) microwave bags for sterilizing the multi-user breast pump parts.

(d) The division and its contracted health insurers, health plans, health maintenance organizations, behavioral health management firms and third-party administrators under contract

to a Medicaid managed care organization or primary care clinician plan shall provide an individual, who is eligible for a covered multi-user breast pump under this section, coverage for: (i) an initial assessment, instruction and fitting by an International Board Certified Lactation Consultant (IBCLC); and (ii) ongoing assessment, support and refitting as needed and prescribed by provider, by an IBCLC.

SECTION 3. Chapter 175 of the General Laws is hereby amended by inserting after section 47UU the following section:-

Section 47VV. (a) As used in this section, “multi-user breast pump” shall mean a breast pump that is: (i) capable of initiating and supporting milk supply; (ii) able to be used by multiple users safely and hygienically; (iii) durable enough to be used by a mother who is expressing 8 times per day or more; (iv) is made for heavy usage with a long motor life; (v) operating using a closed system; (vi) is capable of suction power from 0 to 300 mmHg; (vii) has a multiphase system or the ability to customize vacuum and cycling for each user; and (viii) is run on electricity, not batteries alone.

(b) Any policy, contract, agreement, plan or certificate of insurance issued, delivered or renewed within the commonwealth, which is considered creditable coverage under section 1 of chapter 111M, shall provide coverage for the cost of the rental and usage of a multi-user breast pump by the mother of a newborn infant who is receiving care at an intensive care or special care nursery, or has cardiac, neurological, or oral anomalies that prevent direct feeding at the breast, until such time as the infant is discharged, or until the mother is no longer pumping breast milk. The multi-user breast pump should be made available to the user within 24 hours of maternal hospital discharge.

(c) Any policy, contract, agreement, plan or certificate of insurance issued, delivered or renewed within the commonwealth, which is considered creditable coverage under section 1 of chapter 111M, shall provide an individual, who is eligible for a covered multi-user breast pump under this section, coverage for: (i) periodic replacement parts for the multi-user breast pump including, but not limited to, connectors, valves, tubing, backflow protectors, and flanges; (ii) breast milk storage bags; and (iii) microwave bags for sterilizing the multi-user breast pump parts.

(d) Any policy, contract, agreement, plan or certificate of insurance issued, delivered or renewed within the commonwealth, which is considered creditable coverage under section 1 of chapter 111M, shall provide an individual, who is eligible for a covered multi-user breast pump under this section, coverage for: (i) an initial assessment, instruction and fitting by an International Board Certified Lactation Consultant (IBCLC); and (ii) ongoing assessment, support and refitting as needed and prescribed by provider, by an IBCLC.

SECTION 4. Chapter 176A of the General Laws is hereby amended by inserting after section 8VV the following section:-

Section 8WW. (a) As used in this section, “multi-user breast pump” shall mean a breast pump that is: (i) capable of initiating and supporting milk supply; (ii) able to be used by multiple users safely and hygienically; (iii) durable enough to be used by a mother who is expressing 8 times per day or more; (iv) is made for heavy usage with a long motor life; (v) operating using a closed system; (vi) is capable of suction power from 0 to 300 mmHg; (vii) has a multiphase system or the ability to customize vacuum and cycling for each user; and (viii) is run on electricity, not batteries alone.

(b) Any contract between a subscriber and the corporation under an individual or group hospital service plan that is delivered, issued or renewed within the commonwealth shall provide coverage for the cost of the rental and usage of a multi-user breast pump by the mother of a newborn infant who is receiving care at an intensive care or special care nursery, or has cardiac, neurological, or oral anomalies that prevent direct feeding at the breast, until such time as the infant is discharged, or until the mother is no longer pumping breast milk. The multi-user breast pump shall be made available to the user within 24 hours of maternal hospital discharge.

(c) Any contract between a subscriber and the corporation under an individual or group hospital service plan that is delivered, issued or renewed within the commonwealth shall provide an individual, who is eligible for a covered multi-user breast pump under this section, coverage for: (i) periodic replacement parts for the multi-user breast pump including, but not limited to, connectors, valves, tubing, backflow protectors, and flanges; (ii) breast milk storage bags; and (iii) microwave bags for sterilizing the multi-user breast pump parts.

(d) Any contract between a subscriber and the corporation under an individual or group hospital service plan that is delivered, issued or renewed within the commonwealth shall provide an individual, who is eligible for a covered multi-user breast pump under this section, coverage for: (i) an initial assessment, instruction and fitting by an International Board Certified Lactation Consultant (IBCLC); and (ii) ongoing assessment, support and refitting as needed and prescribed by provider, by an IBCLC.

SECTION 5. Chapter 176B of the General laws is hereby amended by inserting after section 4VV the following section:-

Section 4WW. (a) As used in this section, “multi-user breast pump” shall mean a breast pump that is: (i) capable of initiating and supporting milk supply; (ii) able to be used by multiple users safely and hygienically; (iii) durable enough to be used by a mother who is expressing 8 times per day or more; (iv) is made for heavy usage with a long motor life; (v) operating using a closed system; (vi) is capable of suction power from 0 to 300 mmHg; (vii) has a multiphase system or the ability to customize vacuum and cycling for each user; and (viii) is run on electricity, not batteries alone.

(b) Any subscription certificate under an individual or group medical service agreement delivered, issued or renewed within the commonwealth shall provide coverage for the cost of the rental and usage of a multi-user breast pump by the mother of a newborn infant who is receiving care at an intensive care or special care nursery, or has cardiac, neurological, or oral anomalies that prevent direct feeding at the breast, until such time as the infant is discharged, or until the mother is no longer pumping breastmilk. The multi-user breast pump should be made available to the user within 24 hours of maternal hospital discharge.

(c) Any subscription certificate under an individual or group medical service agreement delivered, issued or renewed within the commonwealth shall provide an individual, who is eligible for a covered multi-user breast pump under this section, coverage for: (i) periodic replacement parts for the multi-user breast pump including, but not limited to, connectors, valves, tubing, backflow protectors, and flanges; (ii) breast milk storage bags; and (iii) microwave bags for sterilizing the multi-user breast pump parts.

(d) Any subscription certificate under an individual or group medical service agreement delivered, issued or renewed within the commonwealth shall provide an individual, who is

eligible for a covered multi-user breast pump under this section, coverage for: (i) an initial assessment, instruction and fitting by an International Board Certified Lactation Consultant (IBCLC); and (ii) ongoing assessment, support and refitting as needed and prescribed by provider, by an IBCLC.

SECTION 6. Chapter 176G of the General Laws is hereby amended by inserting after section 4NN the following section:-

Section 4OO. (a) As used in this section, “multi-user breast pump” shall mean a breast pump that is: (i) capable of initiating and supporting milk supply; (ii) able to be used by multiple users safely and hygienically; (iii) durable enough to be used by a mother who is expressing 8 times per day or more; (iv) is made for heavy usage with a long motor life; (v) operating using a closed system; (vi) is capable of suction power from 0 to 300 mmHg; (vii) has a multiphase system or the ability to customize vacuum and cycling for each user; and (viii) is run on electricity, not batteries alone.

(b) An individual or group health maintenance contract that is issued or renewed shall provide coverage for the cost of the rental and usage of a multi-user breast pump by the mother of a newborn infant who is receiving care at an intensive care or special care nursery, or has cardiac, neurological, or oral anomalies that prevent direct feeding at the breast, until such time as the infant is discharged, or until the mother is no longer pumping breastmilk. The multi-user breast pump should be made available to the user within 24 hours of maternal hospital discharge.

(c) An individual or group health maintenance contract that is issued or renewed shall provide an individual, who is eligible for a covered multi-user breast pump under this section, coverage for: (i) periodic replacement parts for the multi-user breast pump including, but not

163 limited to, connectors, valves, tubing, backflow protectors, and flanges; (ii) breast milk storage
164 bags; and (iii) microwave bags for sterilizing the multi-user breast pump parts.

165 (d) An individual or group health maintenance contract that is issued or renewed shall
166 provide an individual, who is eligible for a covered multi-user breast pump under this section,
167 coverage for: (i) an initial assessment, instruction and fitting by an International Board Certified
168 Lactation Consultant (IBCLC); and (ii) ongoing assessment, support and refitting as needed and
169 prescribed by provider, by an IBCLC.